

CHAPTER - 4

Fundamental Rights & Duties

PREAMBLE –

PART-III : FUNDAMENTAL RIGHTS

- They are justiciable, allowing persons to move the courts for their enforcement, if & when they are violated.
- They are defended & guaranteed by the Supreme Court. Hence, the aggrieved person can directly go to the Supreme Court. They can be suspended during the operation of a National Emergency except the rights guaranteed by Articles 20 & 21. More, the six rights guaranteed by Article 19 can be suspended only when emergency is declared on the grounds of war or external aggression.

Originally the Constitution provided for seven fundamental rights:

1. Right to equality [Art. 14-18]
2. Right to freedom [Art. 19-22]
3. Right against exploitation [Art. 23-24]
4. Right to freedom [Art. 25-28]
5. Cultural & educational rights [Art. 29-30]
6. Right to property [Art. 31]
7. Right to constitutional remedies [Art. 32]

However, the 'right to property' was deleted from the list of fundamental rights by the **44th Constitutional Amendment Act, 1978**. It has been made a legal right under **Article 300A** in the Constitution. So, at present, there are only six fundamental rights.

Fundamental Rights Available to any Person on the Soil of India (except to the Enemy Aliens)

1. Article 14: Equality before law and equal protection of law.
2. Article 20: Protection in respect of conviction for offences.
3. Article 21: Protection of Life and Personal Liberty.
4. Article 23: Prohibition of traffic in human beings and forced labour.
5. Article 25: Freedom of Religion.
6. Article 27: Freedom as to payment of taxes for promotion of any particular religion.

Fundamental Rights Exclusive to the Citizens

1. Article 15: Prohibition of discrimination only on grounds of religion, race, caste, sex or place of birth.
2. Article 16: Equality of opportunity in matters of public employment.

3. Article 19: Protection of certain rights, regarding freedom of speech etc.
4. Article 30: Right to the minorities to establish and administer the educational institutions.

RIGHT TO EQUALITY

Right to equality is very important in a society like ours. The purpose of this right is to establish the rule of law where all the citizens should be treated equal before the law. It has five provisions (Articles 14-18) to provide for equality before law or for the protection of law to all the persons in India and also to prohibit discrimination on the grounds of religion, race, caste, sex or place of birth.

Article 14: Equality before Law

Article 14 says that the State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India

The concept of 'equality before law' is of British origin while the concept of 'equal protection of laws' has been taken from the American Constitution. The first concept connotes: (a) the absence of any special privileges in favour of any person, (b) the equal subjection of all persons to the ordinary law of the land administered by ordinary law courts, and (c) no person (whether rich or poor, high or low, official or non-official) is above the law. The second concept, on the other hand, connotes: (a) the equality of treatment under equal circumstances, both in the privileges conferred and liabilities imposed by the laws, (b) the similar application of the same laws to all persons who are similarly situated, and (c) the like should be treated alike without any discrimination. Thus, the former is a negative concept while the latter is a positive concept. However, both of them aim at establishing equality of legal status, opportunity and justice.

Rule of Law The guarantee of Equality before law is an aspect of what Lord Dicey calls, the 'Rule of Law' that originated in England. It means—no man is above the law and that every person, whatever be his rank or status is subject to the jurisdiction of ordinary Courts. Also, it says that no person shall be subject to harsh, uncivilized or discriminatory treatment even for the sake of maintaining law and order. There are three basic meanings of 'Rule of Law': 1. Absence of Arbitrary power or supremacy of law—'a man can be punished for a breach of law but he cannot be punished for anything else'. 2. Equality before law—no one is above the law. 3. The Constitution is the Supreme law of the land and all

laws passed by the legislature must be consistent with the provisions of the Constitution.

Article 15: No Discrimination on the basis of Religion, Race, Caste, Sex or Place of Birth

The State cannot discriminate against a citizen on the basis of religion, race, caste, sex or place of birth. This is necessary to bring about social equality. Every citizen of India has equal access to shops, restaurants, and places of public entertainment or in the use of wells, tanks or roads without any discrimination. However, the State can make special provisions or concessions for women and children.

Article 16: Equality of Opportunity to all Citizens in matter of Public Employment

The State cannot discriminate against anyone in the matter of public employment. All citizens can apply and become employees of the State. Merits and qualifications will be the basis of employment. However, there are some exceptions to this right. There is a special provision for the reservation of posts for citizens belonging to Scheduled Castes, Scheduled Tribes and Other Backward Classes (OBCs).

Article 17: Abolition of Untouchability

'Untouchability' is abolished and its practice in any form is forbidden. The Constitution itself does not prescribe any punishment under this Article. The Parliament enacted the 'Untouchability (offences) Act, 1955' which prescribes the punishment for the practice of untouchability.

Article 18: Abolition of Titles

'No title, no being a Military or Academic distinction, shall be conferred by the State'. No citizen of India shall accept any title from any foreign State. Article 18 does not prescribe any punishment for the offence. The conferment of titles of 'Bharat Ratna', 'Padma Vibhushan', 'Padma Bhushan', 'Padma Shri' etc., are not violative of Article 18.

RIGHT TO FREEDOM - ARTICLE 19 - 22

Article 19:

Article 19 of the Constitution guarantees to the citizens of India the following six fundamental rights/freedoms: (a) freedom of speech and expression (b) to assemble peacefully and without arms (c) to form associations or unions (d) to move freely throughout the territory of India (e) to reside and settle in any part of the territory of India (f) to property (removed by the 44th Constitutional Amendment Act, 1978 and transferred to Article 300 A) (g) to practice any profession, or to carry on any occupation, trade or business.

The State can impose reasonable restrictions. The right to form association, unions etc. does not give right to

strike. The Indian Constitution does not provide for the freedom of Press separately. It is implicit in Article 19, which grants freedom of speech and expression.

Article 20 Protection in respect of conviction for offences

This protection is available against the following three types of convictions: (a) Ex-post facto legislation: This means enacting a law and giving it a retrospective (i.e., from a previous date/ year) effect/ this is applicable only for civil legislations while criminal legislations cannot be given retrospective effect. (b) Double jeopardy: This means that an individual can be punished for a crime only once and also not beyond the period prescribed by the authority. (c) Prohibition against self incrimination: No person, accused of an offence, shall be compelled to be a witness against himself.

Article 21: Protection of life and personal liberty

Article 21 declares that no person shall be deprived of his life or personal liberty except according to procedure established by law. This right is available to both citizens and non-citizens.

The Supreme Court has reaffirmed its judgement in the Menaka case in the subsequent cases. It has declared the following rights as part of Article 21: (1) Right to live with human dignity. (2) Right to decent environment including pollution free water and air and protection against hazardous industries. (3) Right to livelihood. (4) Right to privacy. (5) Right to shelter. (6) Right to health. (7) Right to free education up to 14 years of age. (8) Right to free legal aid. (9) Right against solitary confinement. (10) Right to speedy trial. (11) Right against handcuffing. (12) Right against inhuman treatment. (13) Right against delayed execution. (14) Right to travel abroad. (15) Right against bonded labour. (16) Right against custodial harassment (17) Right to emergency medical aid. (18) Right to timely medical treatment in government hospital. (19) Right not to be driven out of a state. (20) Right to fair trial. (21) Right of prisoner to have necessities of life. (22) Right of women to be treated with decency and dignity. (23) Right against public hanging. (24) Right to road in hilly areas. (25) Right to information. (26) Right to reputation. (27) Right of appeal from a judgement of conviction (28) Right to family pension (29) Right to social and economic justice and empowerment (30) Right against bar fetters (31) Right to appropriate life insurance policy (32) Right to sleep (33) Right to freedom from noise pollution (34) Right to sustainable development (35) Right to opportunity.

Article 21A: Right to Education

Article 21 A declares that the State shall provide free and compulsory education to all children of the age of six to fourteen years in such a manner as the State may

determine. Thus, this provision makes only elementary education a Fundamental Right and not higher or professional education. This provision was added by the 86th Constitutional Amendment Act of 2002. This amendment is a major milestone in the country's aim to achieve 'Education for All'. In pursuance of Article 21A, the Parliament enacted the Right of Children to Free and Compulsory Education (RTE) Act, 2009.

Article 22: Protection against arrest and detention in certain cases

The authority cannot arrest or detain a person without properly informing him/her of the grounds for such arrests/decision. The detained/arrested person must be produced before the nearest Magistrate within 24 hours of arrest (excluding the holidays and time taken during the journey). The period of the detention cannot be extended beyond what is authorized by the Magistrate. Protection against arrest: Article 21 guarantees right to life and personal liberty. A law may be enacted by a legislature depriving a person of his right. Article 22 sets out certain limitations upon the powers of the legislature. If a law contravenes the conditions or limitations prescribed by Article 22 the law would be a nullity. Article 22 is not a complete code. It has to be construed with Article 21. Article 22 has two parts.

The first part consists of Clauses (1) and (2). These clauses apply to all arrests made under any law except under a law of preventive detention. The rights flowing from this Article in case of ordinary arrests are:

1. Right to be informed of the ground of arrest
2. Right to consult and be defended by a lawyer
3. Right to be produced before a magistrate within 24 hours of his arrest (excluding the time of journey)
4. Right to be detained for more than 24 hours without the authority of a magistrate.

Protection of Article 22 when not available to

(a) an enemy alien and (b) a person detained under a law of preventive detention

Preventive detention: The second part of Article 22 comprising of Clauses (4) and (5) provide safeguards to detainees under a law for preventive detention. It is noteworthy that these safeguards are available even to enemy aliens. Preventive detention is the detention of a person where the evidence against him is not sufficient for his conviction by a court but is sufficient to justify his detention for reasons for defence, foreign affairs, security of state, maintenance of public order etc. Punitive detention punishes a person for something done by him. Preventive detention prevents a person from doing something. Preventive detention is a precaution taken by the executive. Its justification is reasonable suspicion or probability.

RIGHT AGAINST EXPLOITATION – Article 23 – 24

Article 23 prohibits traffic in human beings, begar (forced labour) and other similar forms of forced labour. Any contravention of this provision shall be an offence punishable in accordance with law. This right is available to both citizens and non-citizens. It protects the individual not only against the State but also against private persons.

Article 24 prohibits the employment of children below the age of 14 years in any factory, mine or other hazardous activities like construction work or railway. But it does not prohibit their employment in any harmless or innocent work. The Child Labour (Prohibition and Regulation) Act, 1986, is the most important law in this direction.

RIGHT TO FREEDOM OF RELIGION (Article 25–28)

Article 25: Freedom of conscience, profession, practice and propagation of religion

Subject to public order, morality and health and to the other provisions of this part, all persons are equally entitled to the freedom of conscience and the right to profess, practice and propagate does not mean alluring a person to join any religion.

Article 26: Freedom to manage religious affairs

Subject to public order, morality and health, every religious denomination or any section thereof shall have the right:

1. To establish and maintain institutions for religious and charitable purposes.
2. To manage its own affairs in the matters of religion.
3. To own and acquire movable and immovable property and to administer such property in accordance with law.

Article 27: Freedom as to payment of taxes for promotion of any particular religion

No person shall be compelled to pay any tax for religious purposes.

Articles 28 divides educational institutions into four categories: 1. Wholly maintained by the State 2. Recognized by the State 3. Receive aids out of the State funds 4. Administered by the State, but established under a religious endowment.

Cultural and Educational rights (Article 29–30)

Article 29: Protection of interests of minorities

Any section of the citizens, residing in the territory of India or any part thereof, having a distinct language, script or culture of its own, shall have the right to conserve the same.

Article 30: Right of minorities to establish and administer educational institutions

All minorities, whether based on religion or language, shall have the right to establish and administer educational institutions of their choice. It provides to religious, educational and cultural institutions, the right to own possess and dispose immovable property. Administer means the management of affairs of the institution. The State can regulate the working of such institutions.

Article 32: Right to Constitutional Remedies

Dr B.R. Ambedkar called this Article as 'The fundamental of Fundamental Right' and 'the heart and soul of the Constitution'. To enforce the Fundamental Rights, the Supreme Court is empowered, under Article 32, to issue writs of various forms.

FORMS OF WRITS

HABEAS CORPUS

- Literally means 'to have the body'. It implies that a person imprisoned or detained by the law can enquire under what authority he has been imprisoned or detained. The Court issues the writ against the authority concerned if the executive arrests someone without the authority of law or in contravention of procedure established by law.

MANDAMUS

- Literally means a 'command' issued by the court commanding a person or a public authority to do, or forbear to do something in the nature of public duty. The writ of mandamus can be issued by the Court to enforce Fundamental Rights; whenever a public officer or a Government has committed an act violating a person's Fundamental Rights, the Court can restrain that authority from enforcing such orders or committing such an act.
- The writ is issued against a private individual or organization unless the State is in collusion with such a party in contravening a Constitutional provision or a statute.

QUO WARRANTO

- An order issued by the court to prevent a person from holding office to which he is not entitled and to oust him from that office.
- For the writ of quo warrant to be issued, the office must be public, created by statute or by the Constitution, the office must be a substantive one, and there should have been a contravention of the Constitution or a statute in appointing the person to that office.

PROHIBITION

- The writ of prohibition is issued by the Supreme Court or a High Court to an inferior Court forbidding the latter to continue proceedings in a case in excess of its jurisdiction or to usurp a jurisdiction with

which it is not legally vested.

- The writ is not available against a public officer not vested with judicial or quasi-judicial functions. The Supreme Court can issue the writ only where a Fundamental Right is affected.

CERTIORARI

- The writ of certiorari is issued to a lower Court after a case has been decided by it, quashing the decision or order. The objective to secure that the jurisdiction of an inferior Court or tribunals is properly exercised and that it does not usurp the jurisdiction which it does not possess.
- In short, while prohibition is available during the pendency of the proceedings and before the order is made, certiorari can be issued only after the order has been made, under similar circumstances.

PART-IV: Directive Principles of State Policy [Article 36 to 51]

The phrase 'Directive Principles of State Policy' denotes the ideals that the State should keep in mind while formulating policies & enacting laws. It includes the legislative & executive organs of the central & state governments, all local authorities & all other public authorities in the country. The Directive Principles are non-justiciable in nature, that is, they are not legally enforceable by the courts for their violation. Therefore, the government cannot be compelled to implement them. They aim at providing social & economic justice of the people.

These principles can be classified under the following categories:

Socialist Principles

Article 38—to secure a social order for the promotion of welfare of the people.

Article 39—to strive to minimise inequalities of income.

Article 39 (b)—Ownership and control of material resources of the community shall be so distributed so as to subserve the common good.

Article 39 (d)—Equal pay for equal work.

Article 39 (e)—Health and strength of workers, and the tender age of children must not be abused.

Article 39 A—Equal justice and free legal aid.

Article 42—Provision of just and humane conditions for work and maternity relief.

Article 43 A—Participation of workers in the management of the industries.

The Gandhian Principles

Article 40—Organization of Village Panchayats.

Article 43—To promote cottage industry.

Article 46—Promotion of educational and economic interests of the SCs, the STs and the other weaker sections of the society.

Article 47—To bring about the prohibition of intoxicating drinks and drugs that are injurious to health.

Article 48—Organization of agriculture and animal husbandry on modern and scientific lines to prohibit the slaughter of cows, calves and other milch and draught animals.

The Western Liberal Principles

Article 44—Uniform Civil Code for the citizens.

Article 45—Provide free and compulsory education for children below 14 years.

Article 50—Separation of the Judiciary from the Executive. Article 51—To promote international peace and amity.

Amendments:

The 42nd Amendment Act of 1976 added four new Directive Principles to the original list. They require the State:

1. To secure opportunities for healthy development of children (Article 39).
2. To promote equal justice and to provide free legal aid to the poor (Article 39 A).
3. To take steps to secure the participation of workers in the management of industries (Article 43 A).
4. To protect and improve the environment and to safeguard forests and wild life (Article 48 A).

The 44th Amendment Act of 1978 added one more Directive Principle, which requires the State to minimise inequalities in income, status, facilities and opportunities (Article 38).

The 86th Amendment Act of 2002 changed the subject-matter of Article 45 and made elementary education a fundamental right under Article 21 A.

The amended directive requires the State to provide early childhood care and education for all children until they complete the age of six years.

The 97th Amendment Act of 2011 added a new Directive Principle relating to cooperative societies. It requires the state to promote voluntary formation, autonomous functioning, democratic control and professional management of co-operative societies (Article 43B).

Difference Between Fundamental Rights and Directive Principles

- The Fundamental Rights provide the foundation of political democracy in India whereas the Directives spell

out the character of social and economic democracy in India.

- Fundamental rights are in the form of negative obligations of the State i.e., injunction against the actions of the State. The Directive Principles are, on the contrary, positive obligations of the State towards the citizen. Whereas the Fundamental Rights are justiciable, the Directive Principles are non-justiciable.

PART-IVA: FUNDAMENTAL DUTIES

A list of ten fundamental duties was included in the Indian Constitution by the 42nd Amendment Act, 1976 in the form of Article 51 A. For this a new part was created in the Constitution in the form of Part IV-A. The Fundamental Duties in the Indian Constitution are inspired by the Constitution of erstwhile USSR. The idea of including a separate chapter on duties was recommended by the Swaran Singh Committee in view of the fact that duties & rights are inseparable. Moreover, subsequently 11th duty has been added by Constitution (86th Amendment) Act, 2002 in the form of 51 A (k).

Fundamental Duties are non-justiciable i.e., the non-performance of these duties by citizens is not punishable. The following eleven duties have been listed in the Constitution of India:

- a. to abide by the Constitution and respect its ideals and institutions, the National Flag, National Anthem;
- b. to cherish and follow the noble ideals which inspired our national struggle for freedom;
- c. to uphold and protect the sovereignty, unity and integrity of India;
- d. to defend the country and render national service when called upon to do;
- e. to promote harmony and the spirit of common brotherhood amongst all the people of India and to renounce practices derogatory to the dignity of women;
- f. to value and preserve the rich heritage of our composite culture;
- g. to protect and improve the natural environments including forests, lakes, rivers and wildlife;
- h. to develop the scientific temper, humanism and the spirit of inquiry and reform;
- i. to safeguard public property and not to use violence;
- j. to serve towards excellence in all spheres of individual and collective activity; and
- k. A parent or guardian has to provide opportunities for the education of his child/ward between the age of six and fourteen years.